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0 LOCAL ENVIRONMENTAL PLAN 2010

0.1 INTERIM PROVISIONS

Development within NSW is principally regulated through two related documents prepared for each council area. Local Environmental Plans (LEPs) and Development Control Plans (DCPs). LEPs govern the types of development that are permissible or prohibited in different parts of the City and also provide some assessment criteria in specific circumstances.

Whereas DCPs provide detail on design requirements and particular issues that need to be considered.

Orange City Council has recently prepared Orange Local Environmental Plan 2010 (new LEP) to guide the development of the city and protect the natural, social, cultural and heritage values of the City. The new plan is based on the Standard Template for LEPs established by the State government to bring consistency in planning regimes across the state. This approach has standardised the names and types of land use zones, land use definitions and many specific controls. Upon gazettal the new LEP will repeal the previous Orange LEP 2000 (old LEP).

The current DCP was prepared in 2004 and has been drafted to relate to the old LEP. Consequently this necessitates a review of the current Development Control Plan to ensure consistency and workability of the controls contained within this document. A new DCP is anticipated to be completed within 6 months of the gazettal of the new LEP.

However in the interim guidance is required on the appropriate interpretation of the current DCP provisions under the new LEP. This Interim DCP establishes Council's policy on how the provisions are to be interpreted and considered during assessment of development applications.

0.2 GENERAL TRANSLATION OF ZONES

Upon gazettal of the new LEP the permissibility of development will be established by reference to the Land Zoning Map and Land use table at the end of Part 2 of the new LEP. State Environmental Planning Policies (SEPPs) will continue to have effect in the City and may add to the range of permissible development on affected land.

The following table illustrates the conversion of current zones to new zones

Orange Local Environmental Plan 2000 Old zones	**Orange Local Environmental Plan 2010 New zones**
1a General Farming Zone	RU1 Primary Production
2v Village Zone	RU5 Village
2a Urban Residential & 2d Urban Transition Zones	R1 General Residential
2a Urban Residential & 2d Urban Transition Zones	R2 Low Density Residential
No equivalent	R3 Medium Density Residential
2d Urban Transition & 1c Rural Residential Zone	R5 Large Lot Residential
2a Urban Residential & 3b Business Services Zones	B1 Neighbourhood Centre
2a Urban Residential Zone	B2 Local Centre
3a Regional Centre Zone	B3 Commercial Core
3b Business Services Zone.	B4 Mixed Use
3b Business Services Zone.	B5 Business Development
3b Business Services Zone.	B6 Enterprise Corridor
No equivalent	B7 Business Park
4 Industrial & Employment Zone.	IN1 General Industrial
4 Industrial & Employment Zone.	IN2 Light Industrial
5b Distributor Road Zone	SP2 Infrastructure
No equivalent	SP3 Tourist
6 Open Space Zone.	RE1 Public Recreation
6 Open Space Zone.	RE2 Private Recreation
7 Environmental Zones.	E2 Environmental Conservation
7 Environmental Zone.	E3 Environmental Management
2d Urban Transition Zone & 1c Rural Residential Zone.	E4 Environmental Living

Zone conversion table

PO 0.2-1 INTERIM PLANNING OUTCOMES -CONVERSION OF ZONES

1 Throughout this Plan any reference to a zone under Orange Local Environmental Plan 2000 is to be taken to be a reference to the corresponding zone(s) in the zone conversion table.

0.3 GENERAL TRANSLATION OF DEFINITIONS

The new Local Environmental Plan introduces a range of standardised definitions. The new definitions will be applicable and consistent across the state as new LEP's are introduced. However, the new definitions are different to the definitions contained in clauses 86 and 87 of LEP2000.

Objectives.

1. To clarify the interpretation to be given to terms and land uses referred to throughout this DCP.

PO 0.3-1 INTERIM PLANNING OUTCOMES - CONVERSION OF DEFINITIONS

1 Throughout this Plan reference to any land use or development term is interpreted by reference to the dictionary of the LEP.

2 Where a term or land use referred to in this Plan is not defined by the LEP dictionary, the nearest equivalent term is deemed to have effect.

0.4 FORMER LEP MATTERS

The new Local Environmental Plan has been drafted in accordance with the State governments standard template for LEP's. As such, there are a number of matters that were covered by LEP 2000 that are no longer addressed in the new LEP. This section outlines how those matters are to be considered in development assessments pending the new Development Control Plan.

Scenic Areas (former clause 17)

The ridgelines and hills around the City form a visual backdrop in the urban environment. These lands therefore have the ability to subtly influence the visual amenity of many parts of the City far beyond their own local area. Development of these lands needs to be handled sensitively and with appropriate aesthetic and landscaping treatment to preserve its contribution to urban life. This clause applies to land identified on the Scenic Area Maps.

Objectives.

1. To ensure development of scenic areas complements the natural and modified landscape character of areas recognised as contributing to highly valued scenic and landscape qualities of the City.

PO 0.4-1 INTERIM PLANNING OUTCOMES - SCENIC AREAS

1 Development blends into the landscape through the use of appropriate siting, design, external materials and colours, retention of trees including remnant vegetation, establishing of new trees, and enhancing the skyline when viewed either from the urban area of Orange or from public places in the vicinity of the land.

Tree Preservation (Clause 5.9)

Clause 5.9 of Orange Local Environmental Plan 2010 applies to species or kinds of trees or other vegetation that are prescribed by this DCP.

Objectives.

1. To prescribe the kinds of trees and other vegetation that are subject to clause 5.9 of the LEP.
2. To establish the activities that must not occur in relation to trees and vegetation that is subject to clause 5.9 of the LEP.

PO-0.4-2 INTERIM PLANNING OUTCOMES - TREE PRESERVATION

1 Trees prescribed by this DCP must not be ringbarked, cut down, topped, lopped or wilfully destroyed without the Council's approval and landowners consent

2 This clause applies to Eucalypts of any size belonging to the White Box, Yellow Box and Blakely's Red Gum Endangered Ecological Communities, including species indicated as affected in the tree preservation table.

3 This clause also applies to any tree, native or exotic, with a trunk diameter equal to or greater than 300mm at breast height (refer AS4970-2009 for measurement guidelines).

4 Notwithstanding IPO-4(3) this clause does not apply to species indicated as exempt in the tree preservation table.

5 An application for the Council's approval must be accompanied by an appropriately qualified specialist (i.e. Arborist) report outlining the following information

- The location, size, species and condition (i.e. diseased, healthy, etc)
- A statement that details any anticipated impacts on vegetation that may have derived from endangered ecological communities and/or that may be habitat for threatened species
- The purpose of removal and whether the pruning of the tree would be a more practical and desirable alternative
- Whether a replacement tree or trees should be planted
- The location, size and species of any trees proposed to replace those intended for removal
- The owners consent to the application being lodged
- Any other relevant information regarding the tree to be removed (i.e. photographs)

Species <u>subject to</u> Tree Preservation Order regardless of size	**Species <u>exempt from</u> Tree Preservation Order regardless of size**
• Apple Box (*E. bridgesiana*), • Red Box (*E. polyanthemos*), • Candlebark (*E. rubida*) • Snow Gum (*E. pauciflora*) • Argyle Apple (*E. cinerea*) • Brittle Gum (*E. mannifera*) • Red Stringybark (*E. macrorhyncha*) • Grey Box (*E. macrocarpa*) • Cabbage Gum (*E. amplifolia*)	• Radiata pine trees (*Pinus radiata*) • Fruit Trees (*Malus sp, Prunus sp, Pyrus sp)* • Poplar trees of the following species (*Populus nigra* 'Italica', *P deltoides,* and *P alba)* • Willow trees of the following species (*Salix fragilis*, *S viminalis,* and *S alba)*

Tree Preservation Table

Development in vicinity of the Orange Botanic Gardens (former clause 48)

This clause applies to buildings proposed on land shown hatched on the Scenic Area Map 2 - Orange Botanic Gardens.

Objectives.

1. To ensure that development in the vicinity of the Orange Botanic Gardens complements the setting of the gardens

PO-0.4-3 INTERIM PLANNING OUTCOMES - ORANGE BOTANIC GARDENS

1 Buildings are located at a sufficient distance from the boundary of the Orange Botanic Gardens to preserve public views of the Botanic Gardens.
2 Building heights do not unreasonably intrude on the landscape features and views from the Orange Botanic Gardens.
3 A view corridor analysis that demonstrates the visual impacts of the proposal is provided for any substantial building.

Residential development in Ploughmans Valley Release Area (former clause 49)
This clause applies to land within the R2 Low Density Residential Zone generally bounded by Forbes Road, Gorman Road and the proposed distributor road route, known as “Area 2” in the Ploughmans Valley Release Area.

Objectives.

1 To ensure development takes into account the unique landscape qualities of the Valley and provides suitable separation between houses and arterial roads.

PO-0.4-4 INTERIM PLANNING OUTCOMES - PLOUGHMANS VALLEY

1 Subdivisions establish large lots adjoining arterial roads and along the western boundary of the R2 zone in the vicinity of the western ridge

Residential development in the Murphys Lane and Gorman Road area

This clause applies to land within the R5 Large Lot Residential Zone generally bounded by Murphys Lane, Gorman Road and the Escort Way as shown in the Murphys Lane-Gorman Road Map.

Objectives.

1 To ensure development protects and enhances the visual approach into the urban area.

2 To ensure the area provides a transition between the urban area of the city and the rural lands beyond.

3 To limit the use of on-site waste disposal systems.

PO 0.4-5 INTERIM PLANNING OUTCOMES - MURPHYS LAND AND GORMAN ROAD

1 Development of land within the area comprises rural style fencing and does not comprise coloured metal fencing.
2 Development of land within the area is accompanied by a landscape plan that demonstrates how the buildings will be blended into the landscape.

3 Development of land within the area is landscaped to effectively prevent skylining of buildings.
4 Development of land within the area comprises rural style fencing and does not comprise coloured metal fencing.
5 Development of land within the area is accompanied by a landscape plan that demonstrates how the buildings will be blended into the landscape.
6 Development of land within the area is landscaped to effectively prevent skylining of buildings.
7 Ancillary buildings and outbuildings are located behind the front building line of the main dwelling and provided with screen landscaping when viewed from the public road.
8 Rainwater tanks are preferably located behind the main building or outbuilding and may be buried.
9 Where permitted by the minimum lot size map of the LEP all subdivisions creating lots below 2ha must provide reticulated sewer to lots below 2ha.

Roadside stalls in rural areas (former clause 37 & 73A)

This clause applies to the on-site sale of primary produce, including wine, that is substantially grown or produced on land within the RU1 or E3 zones, being offered for sale by the producer.

Objectives.

1 To promote economic viability of rural lands
2 To foster diversity of agricultural activities in rural areas
3 To protect the safe and efficient operation of roads for the passage of traffic.

PO 0.4.0-6 INTERIM PLANNING OUTCOMES - ON-SITE SALES

1 The roadside stall must be situated wholly within the site boundaries.
2 Roadside stalls must be located a minimum of 40m from any intersection.
3 The access point to the local road must be of a suitable gradient for traffic.
4 The access point to the local road must have adequate line of sight distances in both directions for the prevailing speed limit.
5 Each roadside stall must provide space for a minimum of three customer parking spaces within the site boundaries.
6 Roadside stalls must not be designed to encourage parking within the road reserve.
7 All parking and manoeuvring areas associated with the roadside stall must ensure vehicles are able to enter and leave the site in a forwards direction.
8 The design of the building must complement the rural character of the locality.

Development in the Village of Lucknow (former clause 47)

Due to the former mining activity in the Village of Lucknow, consent may be granted for development in the Village of Lucknow and on land adjacent to the Village, which is likely to have been used for mining, only where Council has considered a professionally prepared geotechnical report that indicates whether the land is suitable for the development.

Objectives.

1. To ensure new development is not exposed to unnecessary risk of mine subsidence related damage.

PO 0.4-7 INTERIM PLANNING OUTCOMES - LUCKNOW

1 A geotechnical report, prepared by a suitably qualified specialist, is provided to Council.

2 The geotechnical report addresses:
- the suitability of the land for the development, taking into account the effect of the proposal upon mine shafts, mine spoil and other mining relics;
- the potential of mine subsidence or land contamination to affect the development; and
- whether the development has the potential to adversely affect the cultural and heritage values represented by former mining activity and associated relics.

3 The geotechnical report must make recommendations on whether the development is safe to proceed and include suggested measures to lessen the potential risks to the development.

Bulky goods premises (former clause 55)

Bulky goods premises are permissible with consent in the B5 Business Development zone. Bulky goods premises are distinguished from regular retail shops on the basis that the majority of goods being sold are of such size or weight as to require

(a) a large area for handling, display or storage, or
(b) direct vehicular access to the site of the building or place **by members of the public** for the purpose of loading or unloading such goods into or from their vehicles after purchase or hire.

Objectives

1 To clarify how the *bulky goods premises* definition shall be interpreted during the assessment of development applications.

2 To ensure the continued trading performance of the B3 Commercial Core is not threatened by out of centre commercial activity.

PO 0.4-8 INTERIM PLANNING OUTCOMES - BULKY GOODS PREMISES

1 The following items are not included in the development unless the gross floor area of the building used for the sale, storage and display of the items is equal to or greater than the area shown below:

Retail items	**Gross floor area**
Furniture	500 square metres
Electrical goods	500 square metres
Toy and sporting equipment	500 square metres
Office supplies	500 square metres
Hardware and building supplies	500 square metres
Outdoor products	500 square metres
Floor coverings	250 square metres
Automotive parts and accessories	250 square metres
Lighting	250 square metres
Antiques and second hand goods	250 square metres
Kitchen or bathroom showrooms	150 square metres
Tiles (floor, ceiling, wall)	150 square metres

2 The proposed development demonstrates that it will not have an adverse impact on the viability of land within the B3 Commercial Core zone of the Orange CBD.

3 Bulky goods premises does not include supermarkets, department stores, discount department stores or specialty shops, including but not limited to home consumption, clothes, footwear and fashion accessories.

Retailing in industrial areas (former clause 58)

Industrial zones provide land for manufacturing, processing, logistics and other employment purposes that are important to the local economy but that would not normally be able to

afford prime commercial space. Importantly industrial zones are not intended for generic retailing or commercial purposes which may draw trade and traffic out of the CBD resulting in less efficient and viable commercial precincts and traffic flows.

Objectives.

1 To conserve the trading performance of the Orange CBD and other commercially zoned lands.
2 To allow for the day to day convenience needs of industrial zone workers.
3 To enable minor ancillary retailing in association with other purposes permitted in the zone.

PO 0.4-9 INTERIM PLANNING OUTCOMES - INDUSTRIAL RETAILING	
1	Industrial retail outlets are demonstrated to be ancillary to another approved use on the site, with the other use providing the dominant economic role of the site.
2	Neighbourhood shops are demonstrated to principally serve the day to day needs of workers in the industrial zone and are unlikely to draw trade from a significant distance.

Note: *Both industrial retail outlets and neighbourhood shops are subject to floor space limits under clause 5.4 of Orange LEP 2011.*

Development near a residential zone (former clause 59)

Industrial development typically has the potential to generate adverse impacts on surrounding land and must therefore be designed and operated in a manner that minimises such impacts. This becomes particularly relevant where industrial land adjoins or is in proximity to residential land. This clause applies to development on land within the IN1 General Industrial and IN2 Light Industrial zones that is within 800m of residential zones or established dwellings in any zone.

Objectives.

1 To preserve reasonable levels of residential amenity for existing and future residents.
2 To protect the character of residential areas from intrusive or obnoxious development.

PO 0.4-10 INTERIM PLANNING OUTCOMES - RESIDENTIAL PROXIMITY	
1	The design of industrial and commercial development is consistent or compatible with nearby residential areas in terms of design, siting and landscaping.
2	The hours of operation, traffic and noise generation do not interfere with reasonable expectations of residential amenity.
3	Noise-generating activities are contained within the building where practicable.
4	Industrial air conditioning compressors are shielded to direct noise away from residential development.
5	Car park and security lighting is positioned and shielded to prevent direct light spill onto residential properties.
6	Measures to prevent dust, odour and chemical spray from reaching or affecting residential properties must be demonstrated.
7	The design must demonstrate how residential privacy and solar access will be maintained.

Development along transport routes (former clause 65)

Development alongside roads that convey a high volume of traffic need to be appropriately designed and managed to ensure the safe and efficient operation of the local road network is not compromised. Additionally, the visual treatment of development alongside arterial and

other important roads plays a significant role in the impression that residents and visitors have of the area. This clause applies to all land adjoining an arterial road, distributor road, major collector road and Cadia Road.

Objectives.

1 To ensure the continued safe and efficient operation of arterial and other important road corridors.
2 To alleviate traffic flows on high volume routes whenever feasible.
3 To promote a high level of urban design on land exposed to significant volumes of traffic, cyclists and pedestrians.

PO 0.4-11 INTERIM PLANNING OUTCOMES - TRANSPORT ROUTES

1 The development provides a high standard of visual appeal to motorists, cyclists and pedestrians as well as adjoining property owners.
2 The visual appearance of the development, including any signage, lighting or other ancillary element, must not generate a distraction to motorists.
3 Any signage must not be animated whether by movement or flashing lights.
4 Where land has more than one street frontage the street with the lower volume of traffic is to provide the principal access to the development, subject to safety considerations.
5 Where access is provided onto an arterial road, distributor road or major collector road, the access point must have appropriate safe sight distances for the prevailing speed limit and clear and unimpeded entrance/exit signage must be displayed.
6 Where on-site customer parking is provided that is not immediately visible from a public road clear and unimpeded directional signage must be displayed.
7 Where the proposal is residential, or another noise sensitive form, appropriate noise mitigation measures to limit the development from traffic noise must be demonstrated.

Use of land at Orange (Spring Hill) Airport (former clause 66)

The Orange (Spring Hill) Airport is an important regional resource providing an important transport link as well as contributing strongly to the local economy. Development and use of land at the Airport must therefore be designed and operated in a manner that ensures the ongoing viability, efficiency and safe operation of the Airport. The Airport is also located within the Orange water supply catchment, all activities must therefore be designed and operated in a manner that preserves and protects water quality.

Objectives.

1 To ensure development does not place an undue burden or demand on the provision of utility services
2 To ensure that run off waters do not compromise the integrity and quality of the City's water supply

PO 0.4-12 INTERIM PLANNING OUTCOMES - AIRPORT

1 Proposals must demonstrate that adequate utility services are available to provide for the development.
2 Proposals must not compromise the current or future operations of the Airport, including establishment or expansion of public facilities such as the terminal building and car parking.
3 Water run off must be managed and treated to predevelopment quality or better and predevelopment quantities or less.

Development in the vicinity of major industry and utility installations (former clause 14)

Major industry and utility installations are important components of any functioning community. The scale and nature of such facilities often result in unavoidable impacts to the surrounding lands. It is therefore important to ensure that certain forms of development, known as sensitive receptors, are not unnecessarily exposed to the effects of such facilities due to the siting or design of the sensitive receptor. This provision applies to land shown hatched in the Major Industry and Utility Maps and the types of development listed in the following table (where permissible).

Affected Development Types

All types of Residential Accommodation

All types of Tourist and Visitor Accommodation

Child care centres

Home based child care

Places of Public Worship

Funeral Homes

All types of Educational Establishments

All types of Health Service Facilities

Recreation areas and all forms of Recreation Facilities

Objective.

1 To ensure the continuation of major industry and utility installations are not compromised by surrounding development.

2 To require new development to be sited, designed, constructed and operated in a manner that limits the impact of major industry and utility installations.

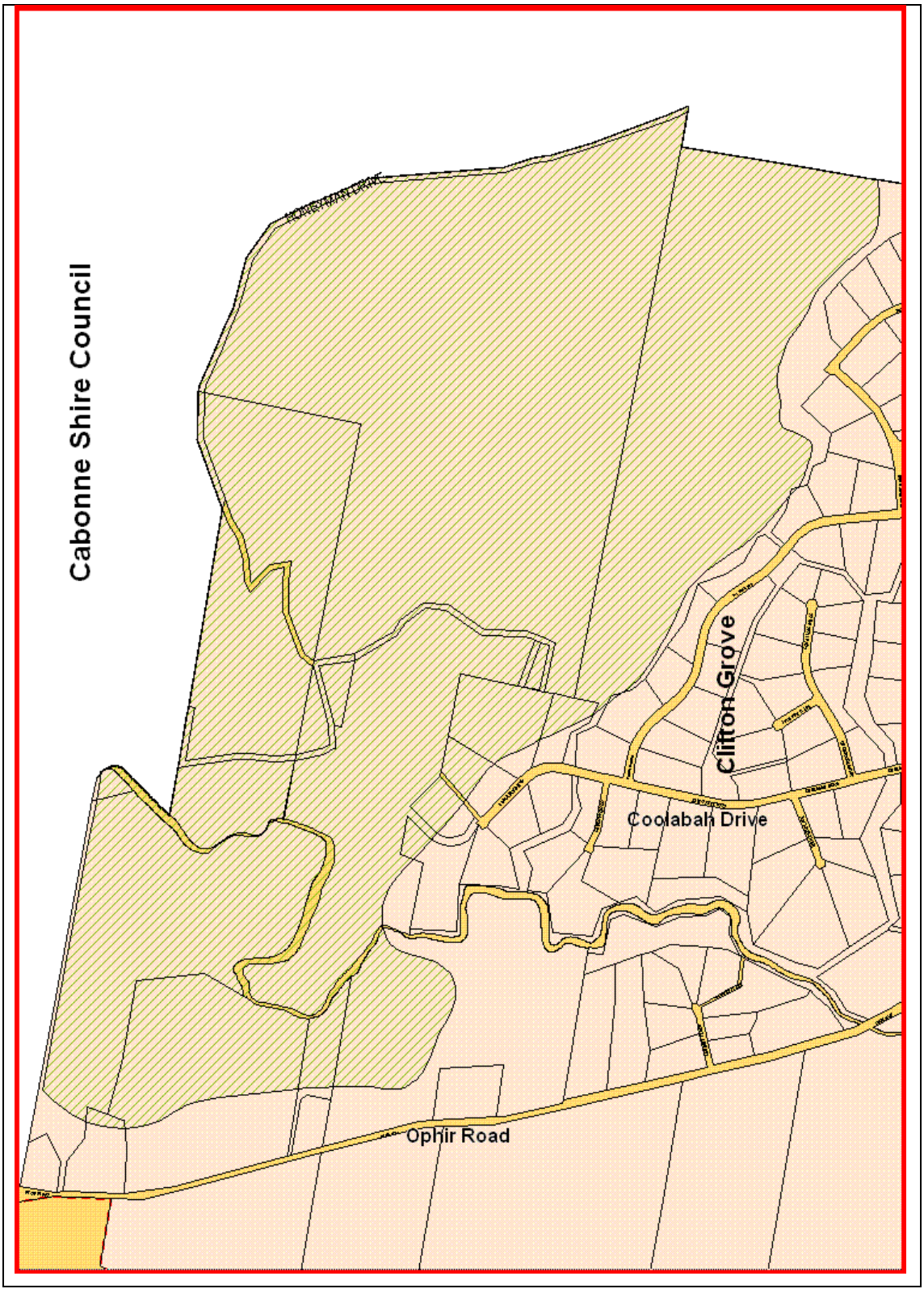
PO 0.4-13 INTERIM PLANNING OUTCOMES - MAJOR INDUSTRY AND UTILITY BUFFER

1 Development in the vicinity of major industry and utility installations is sited as far as practicable from the industry or installation.

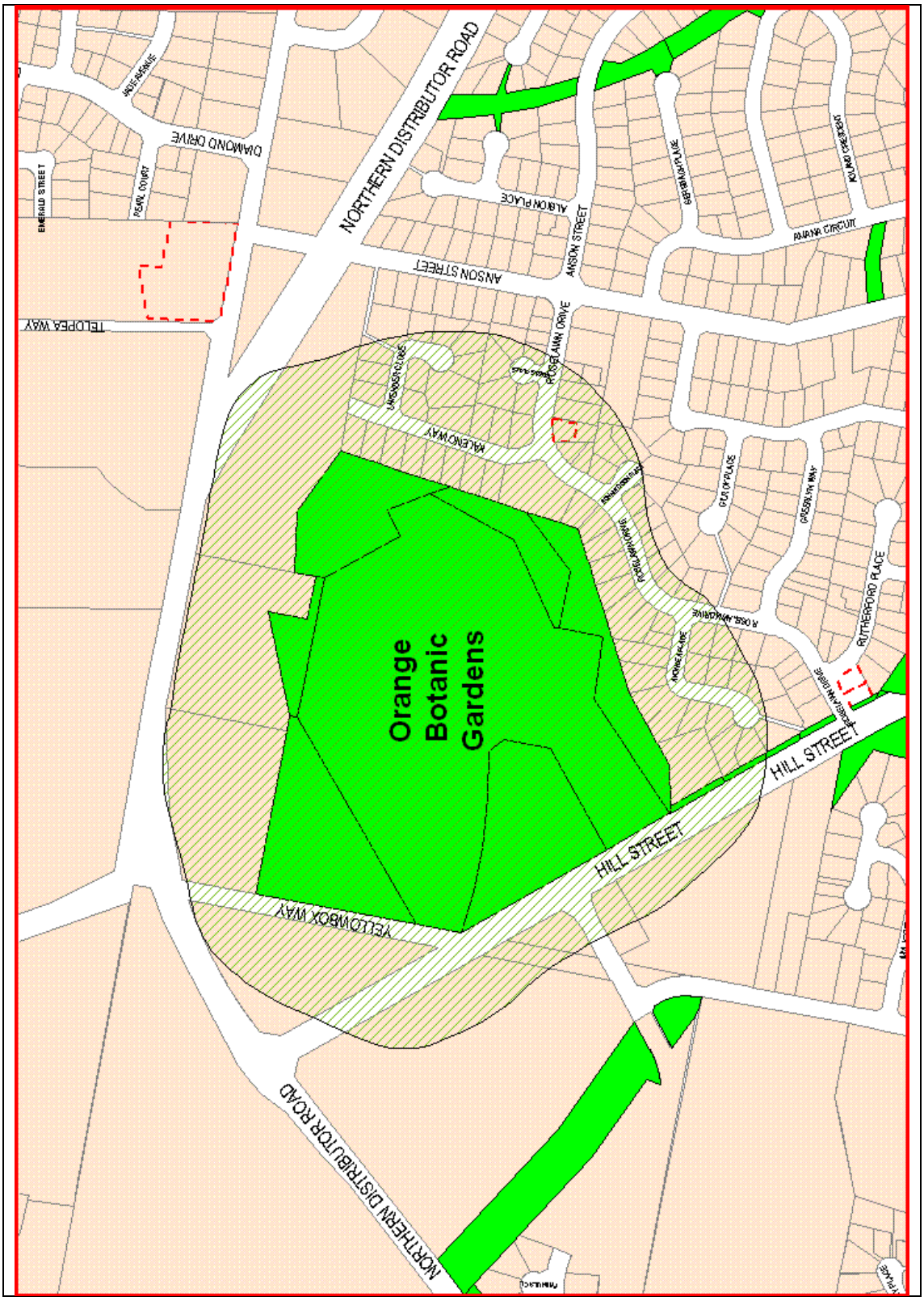
2 Development demonstrates that between 10.00pm and 7.00am internal noise levels will be below Laeq 35dB(A) in all bedrooms and less than Laeq 40dB(A) in all other rooms (excluding garages, kitchens, bathrooms or hallways).

0.5 Maps

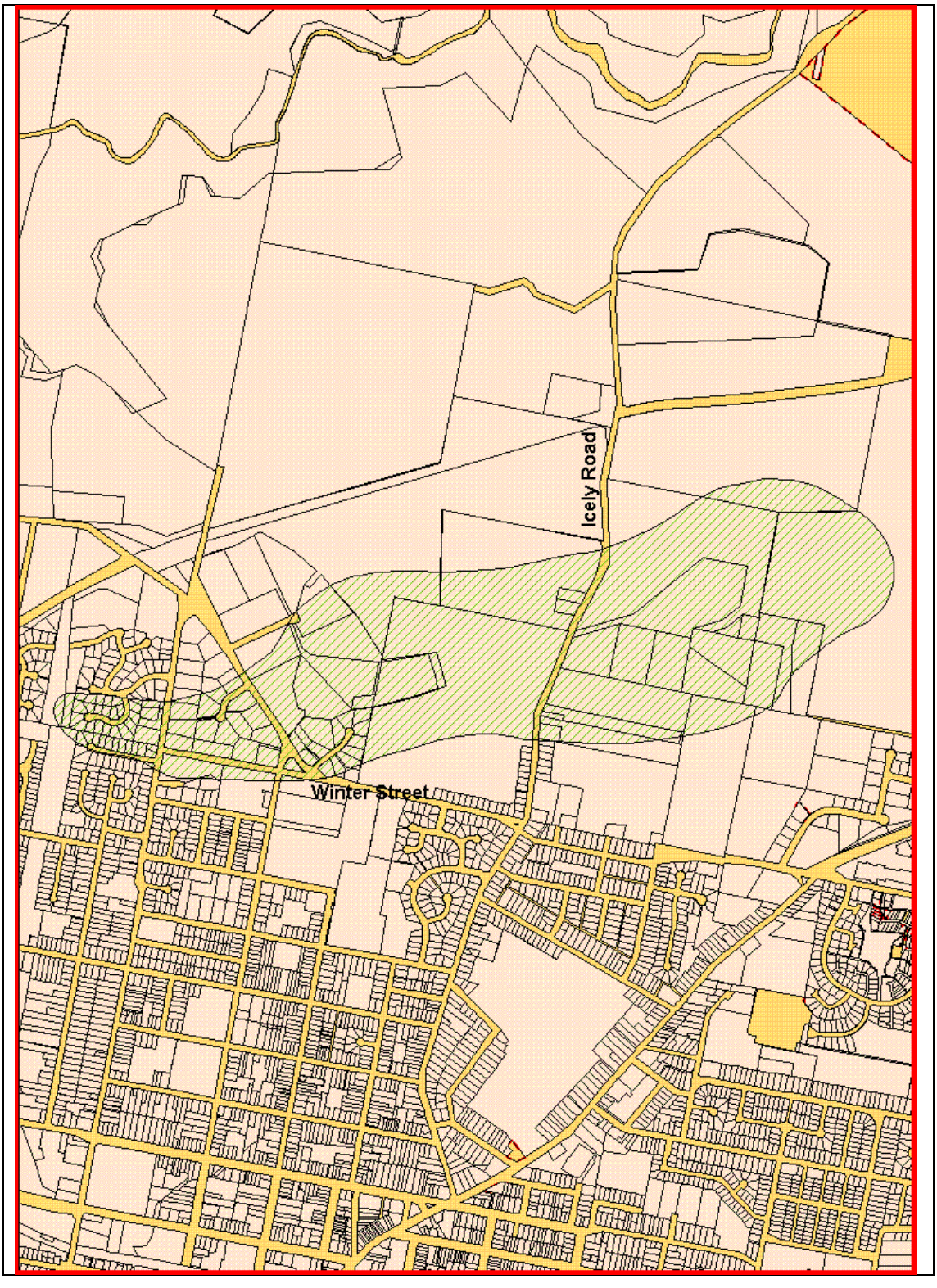
(maps on following pages)



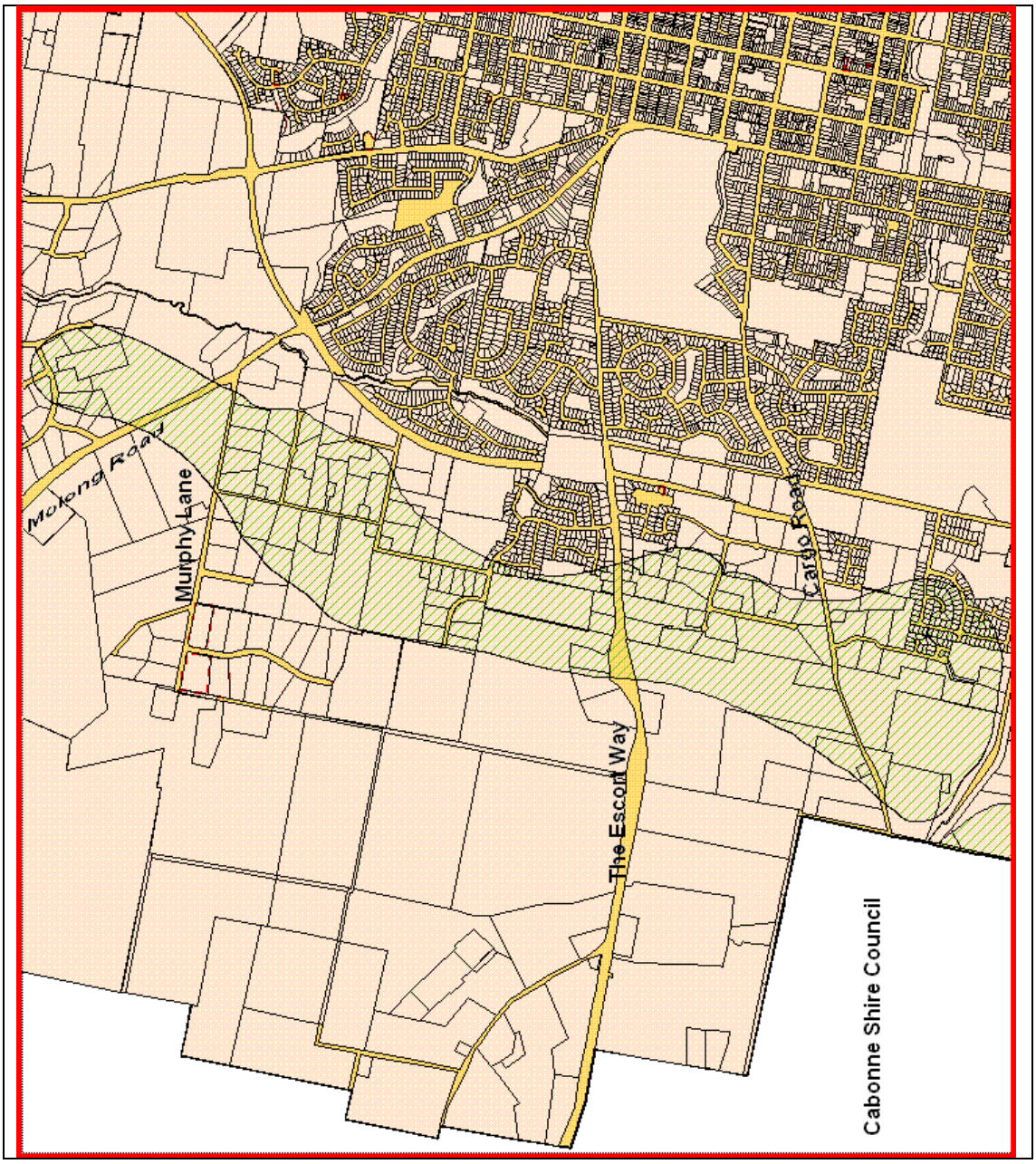
Scenic Area Map 1 - Clifton Grove



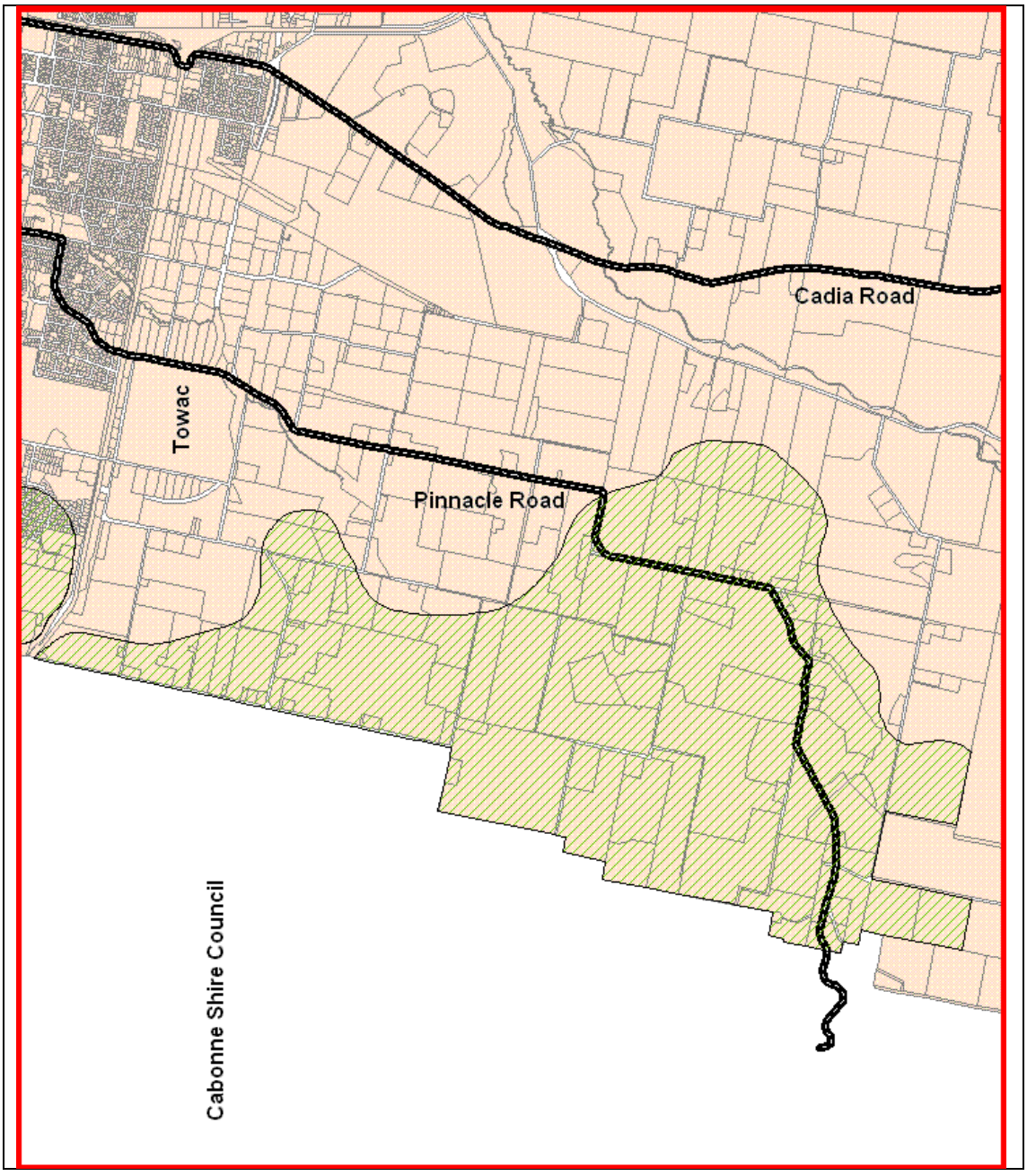
Scenic Area Map 2 – Orange Botanic Gardens



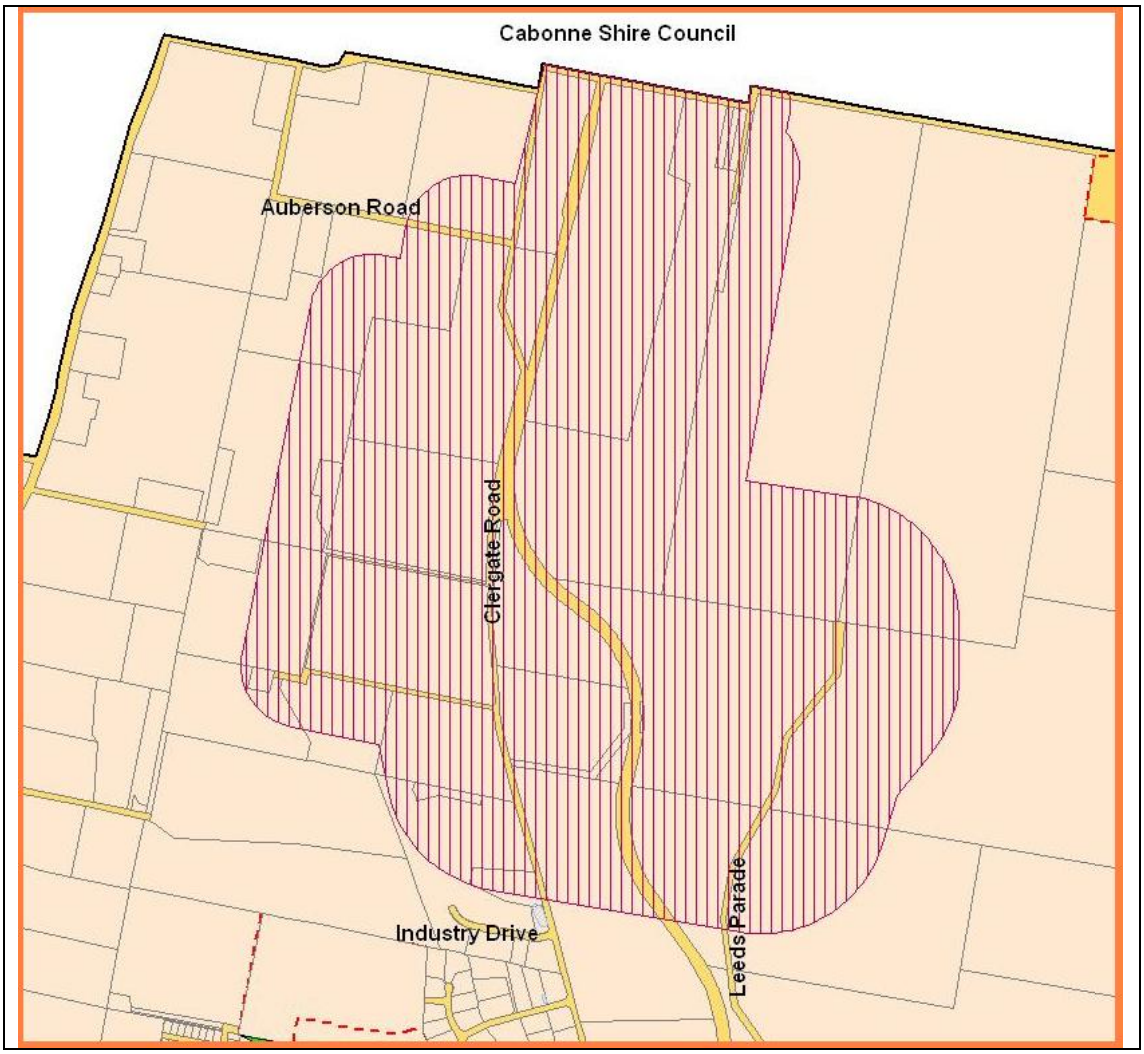
Scenic Area Map 3 – Icely Road



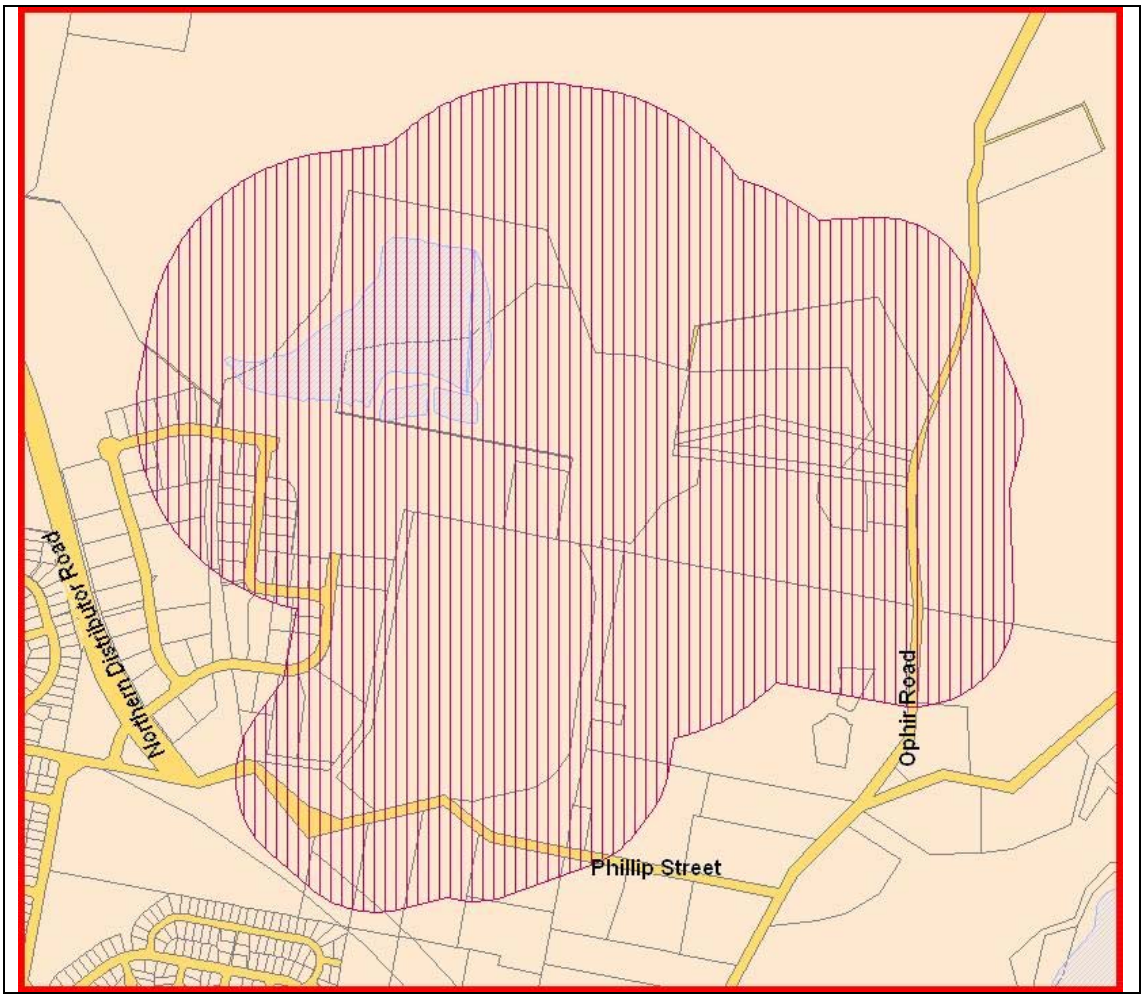
Scenic Area Map 4 – Ploughmans



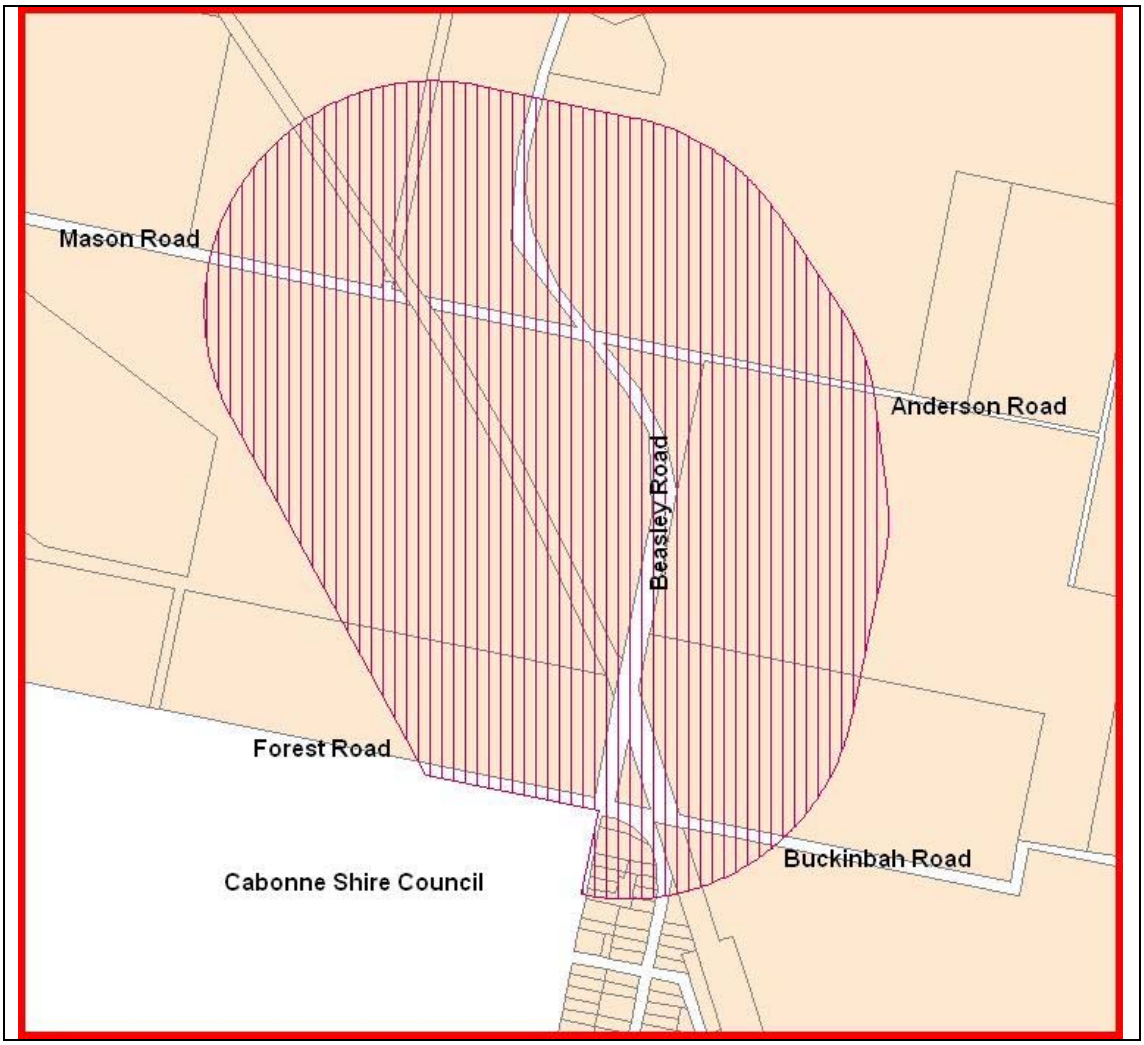
Scenic Area Map 5 - Pinnacle Road



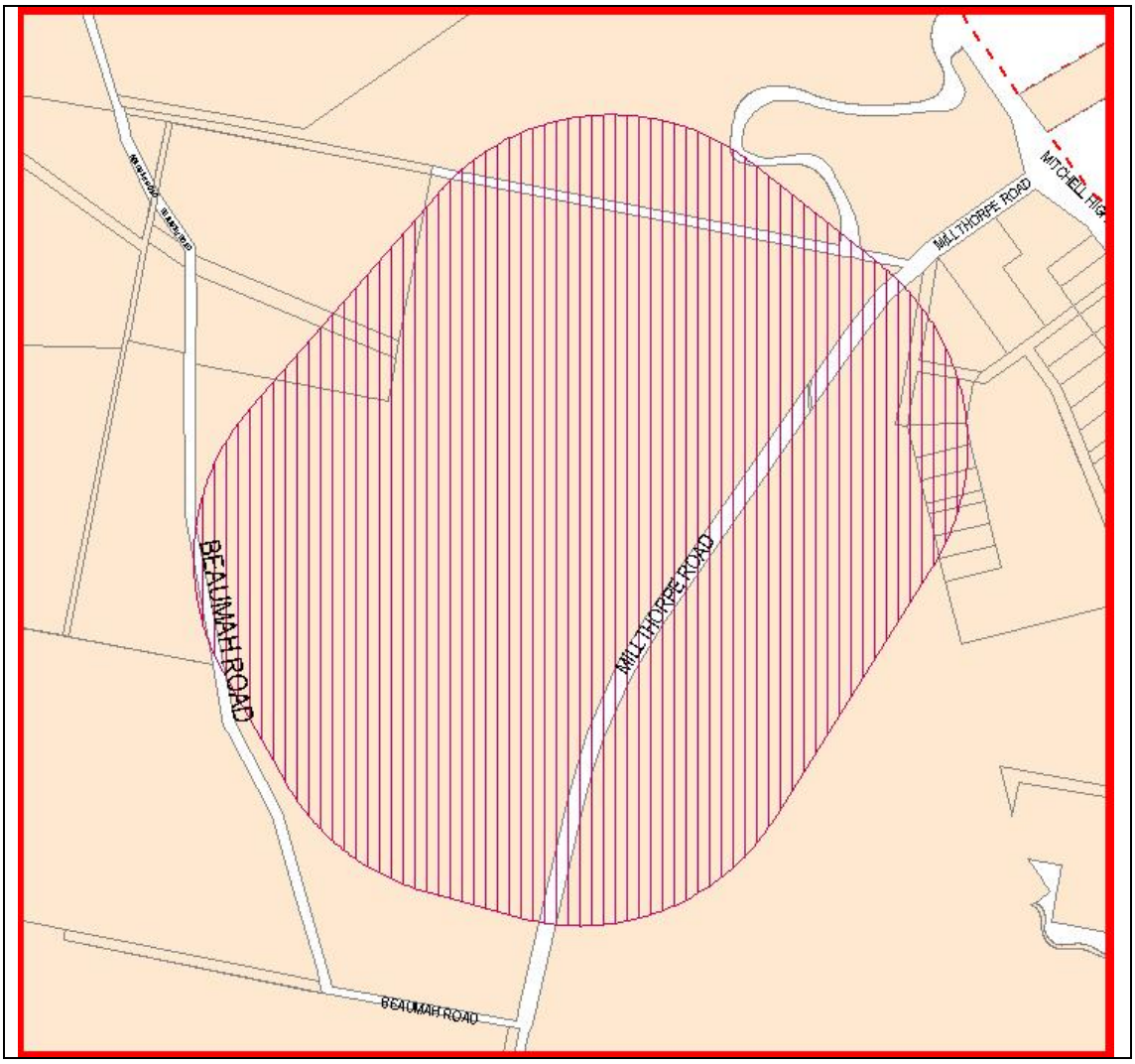
Major Industry and Utility Buffer Map 1



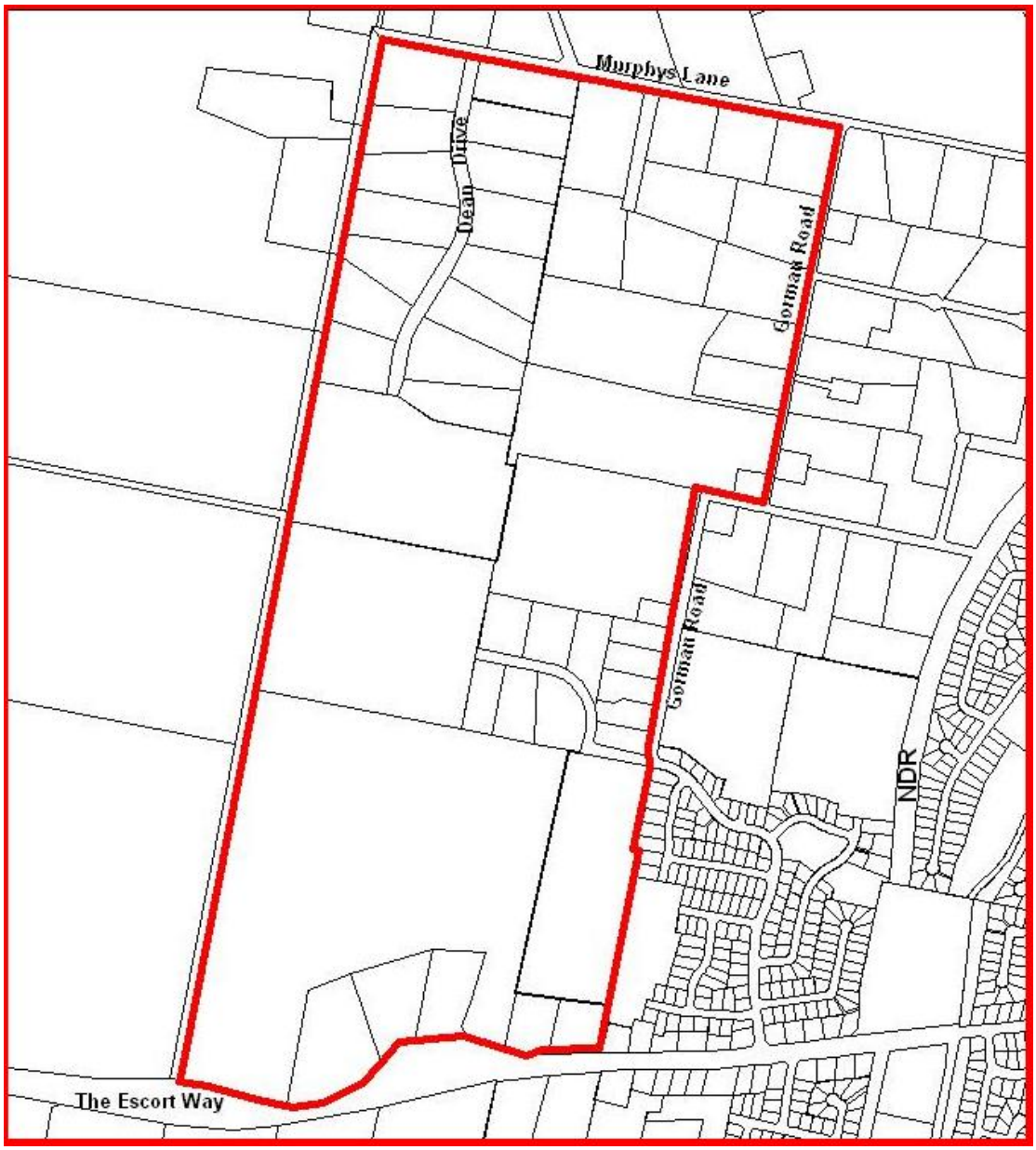
Major Industry and Utility Buffer Map 2



Major Industry and Utility Buffer Map 3



Major Industry and Utility Buffer Map 4



Murphys Lane-Gorman Road Map